

**SUBSTITUTE FOR
HOUSE BILL NO. 4911**

A bill to amend 1980 PA 299, entitled
"Occupational code,"
by amending sections 1101, 1111, and 1112 (MCL 339.1101, 339.1111,
and 339.1112), sections 1101 and 1112 as amended by 1984 PA 25 and
section 1111 as amended by 1988 PA 463.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1101. As used in this article:

2 (a) "Barber" means ~~a person~~ **an individual** who shaves or trims
3 the beard of ~~a person~~; **another individual**; cuts, trims, shampoos,
4 relaxes, curls, permanently waves, dresses, tints, bleaches,
5 colors, arranges, or styles the hair of ~~a person~~; **another**
6 **individual; or** massages the face and head of ~~a person~~; **another**
7 **individual. ~~or renders personal services of a similar nature~~**



~~customarily done by a barber.~~

(b) "Barber college" means an establishment ~~which renders that~~
provides for compensation the services of a barber ~~, but having for~~
~~its whose~~ primary purpose ~~the is~~ teaching for compensation ~~of the~~
 theory and practice of serving as a barber.

(c) "Barbershop" means a place ~~, or~~ establishment ~~, or~~
~~premises or part of a premises where a person performs in which 1~~
or more individuals perform as a barber. barbers. Barbershop
includes a mobile barbershop.

(d) "Demonstration" means a show, seminar, or contest in which
 barber services are ~~rendered~~ **performed** for the purpose of educating
 barbers.

(e) "Demonstrator" means ~~a person~~ **an individual** who performs a
~~service of a barber~~ **services** at a demonstration.

(f) "Immediate family" means ~~persons residing~~ **individuals who**
reside together **and** who are related by birth, marriage, or
 adoption.

(g) "Instructor" means ~~a person~~ **an individual** who instructs
 another **individual** in the theory and practice of serving as a
 barber.

(h) "Mobile barbershop" means either of the following:

(i) A self-contained vehicle or other device that is moved,
 towed, or transported from 1 location to another and in which
 equipment used to perform barber services is installed.

(ii) A business in which equipment used to perform barber
 services is transported to and used on a temporary basis at a
 location other than the premises of the owner of a barbershop,
 including, but not limited to, either of the following:

(A) A barbershop owned by another person.



(B) A client's home.

(i) "Owner of a barbershop" means a person that owns and conducts a barbershop.

(j) "Premises" means, for a mobile barbershop, 1 of the following, as applicable:

(i) For a mobile barbershop described in subdivision (h) (i), the vehicle or other device and the equipment installed in the vehicle or device.

(ii) For a mobile barbershop described in subdivision (h) (ii), the equipment used to perform the barber services and the temporary location at which the equipment is used while the equipment is at that location.

(k) ~~(h)~~ "Student" means ~~a person~~ **an individual** learning the theory and practice of serving as a barber.

(l) ~~(i)~~ "Student instructor" means ~~a person~~ **an individual** learning the theory and practice of teaching barbering.

Sec. 1111. (1) The department shall issue a license to a ~~barbershop which fulfills all~~ **person to own a barbershop, at the premises specified in the license application, if both** of the following requirements **are met**:

(a) ~~Has made, through its owner,~~ **An application is submitted** to the department **by the proposed owner of the barbershop**. The application ~~shall~~ **must** include a description of the premises for which licensure is sought.

(b) ~~Has satisfactorily~~ **At the time licensure is sought, the barbershop has** passed an inspection to determine that the barbershop ~~has met~~ **meets** sanitation and establishment standards prescribed in rules promulgated under this article.

(2) ~~A~~ **Except for a mobile barbershop described under section**



1 **1101(h) (ii), the owner of a barbershop shall be ensure that the**
 2 **barbershop is** completely partitioned from a dwelling and ~~shall is~~
 3 not ~~be~~ occupied for lodging or residential purposes.

4 (3) ~~The transfer of~~ **A change in the ownership of a barbershop,**
 5 **or, except for a barbershop that is a mobile barbershop, a change**
 6 **in the** location of a barbershop ~~shall automatically revoke its~~
 7 **revokes the license of that barbershop. A** ~~The department shall not~~
 8 **grant a new license shall not be granted to a new owner or at a new
 9 ~~location unless the requirements of subsection (1) have been~~
 10 ~~fulfilled.~~ **are met.****

11 (4) The **owner of a barbershop shall ensure that the** licenses
 12 of the barbershop and all barbers working in the barbershop ~~shall~~
 13 ~~be~~ **are** displayed in a prominent place visible to the public at all
 14 times. The license of an individual barber may be posted at the
 15 barber's work station.

16 (5) **This section applies to a barbershop that is a mobile**
 17 **barbershop beginning on the effective date of the rules promulgated**
 18 **under section 1112 for the operation of mobile barbershops.**

19 Sec. 1112. (1) The board shall promulgate rules setting forth
 20 standards for sanitation in barbershops and barber colleges.

21 (2) **The board shall promulgate rules for the operation of**
 22 **mobile barbershops and the performance of barber services in or at**
 23 **the premises of mobile barbershops. The board shall promulgate**
 24 **rules described in this subsection not more than 18 months after**
 25 **the effective date of the amendatory act that added this**
 26 **subsection. The rules must include sanitation standards that meet**
 27 **the requirements of subsection (1) and may establish 1 or more of**
 28 **the following for providing barber services in a mobile barbershop:**

29 (a) **Safety requirements.**



1 (b) Permanent address requirements at which 1 or more of the
2 following are located:

3 (i) Records of appointments.

4 (ii) License numbers of employees.

5 (iii) If applicable, the vehicle identification number of the
6 license holder's self-contained facility.

7 (c) Enforcement actions to ensure compliance with the
8 requirements under this article and all local laws and ordinances.